

Nos. 78-79, 81, 83: The responses to these interrogatories only state there are no documents responsive to the requests. These responses are incomplete and evasive, and thus deficient. Defendant is ordered to serve code-compliant further verified responses to Special Interrogatories, Set Three, Nos. 78-79, 81, and 83 within ten (10) days of service of notice of entry of this order.

Sanctions

Code of Civil Procedure section 2033.290, subdivision (d), provides “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Here, Plaintiff has been successful, to a degree, in each motion. Accordingly, the Court awards Plaintiff sanctions in what it finds to be a reasonable amount of \$600.00 for each motion, for a total of \$1,200.00. Sanctions shall be paid by Defendants jointly and severally within ten (10) days of entry of the order. The Court acknowledges Defendants have succeeded in their oppositions to a degree; however, they have not sought sanctions. As such, none are ordered payable by Plaintiff.

7. CU0001352 William Vick vs. Rmax Operating, LLC et al

Defendant Bobby Brown Construction’s motion to compel Defendant/Cross-Defendant RMAX Operating, LLC’s further responses to Form Interrogatories – Construction, Set One (“FIs”), and for sanctions is now MOOT in light of the dismissal of Bobby Brown Construction’s claims against RMAX. No appearances required.

8. CU0001906 Dezmond Devonte Sinclair vs. Tahoe Downtowner, LLC et al

Defendant Town of Truckee’s unopposed motion for leave to file amended answer is dismissed as MOOT. This Defendant was dismissed as a party subsequent to the filing of the motion. No appearances are required.

9. CU0002183 Adventure Resort Marketing, LLC, (ARM) et al vs. B & W Resorts, Inc., dba Harmony Ridge Resort et al

No appearances required. The parties have stipulated to jointly withdraw their respective motions.

10. CU0002187 MA Construction et al v. Li, Jingwen et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed pursuant to Code of Civil Procedure § 583.420. Absent good cause being shown, this matter shall be calendared to be dismissed on June 18, 2027.

11. CU0002216 Peter Zellner et al vs. Amanda Jean Neadeau